

PETITION FOR EXPUNGEMENT UNDER VA. CODE SEC. 19.2-392.2(B)

VIRGINIA:

IN THE COURT OF

(NAME OF THE COURT THAT DISPOSED OF THE CHARGE, AND ITS CITY OR COUNTY - the clerk's office can confirm both)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER,

v.

COMMONWEALTH OF VIRGINIA.

Case No. (the clerk assigns it at filing)

PETITION FOR EXPUNGEMENT UNDER VA. CODE Sec. 19.2-392.2(B)
(IDENTITY USED, WITHOUT CONSENT, BY ANOTHER PERSON)

1. The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, states that the petitioner's name or other identification has been used, without the petitioner's consent or authorization, by another person who was charged or arrested using that name or identification. The petitioner therefore files this petition with the court that disposed of the charge, for relief pursuant to Va. Code Sec. 19.2-392.2, as Sec. 19.2-392.2(B) provides.

2. The petitioner further states:

Petitioner's date of birth: 1968-12-31

Full name shown on the record to be expunged, exactly as the record states it:

.....

Specific charge to be expunged, worded exactly as the court record words it:

.....

.....

Case number of the charge to be expunged, if one appears on the record:

.....

Date of arrest on the charge to be expunged, if known:

.....

Name of the agency that made the arrest on the charge to be expunged:

.....

Disposition of the charge, and the date of final disposition:

.....

3. Your own statement of how your name or identification came to be used when someone else was arrested or charged (state only what you know first-hand; this packet asserts nothing about who committed any offence, and nothing on these lines is written for you):

.....

.....

.....

4. Filed with this petition is one complete set of the petitioner's fingerprints obtained from a law-enforcement agency, as Va. Code Sec. 19.2-392.2(B) requires. The fingerprint instructions page of this packet sets out that step.

5. Under Va. Code Sec. 19.2-392.2(B), no court fees or costs are payable for the filing of this petition.

6. The continued existence and possible dissemination of information relating to the record described above causes or may cause circumstances which constitute a manifest injustice to the petitioner. The petitioner therefore requests that the police and court records, including electronic records, relating to the charge be expunged, and that a copy of any order of expungement be forwarded to the Department of State Police pursuant to Va. Code Sec. 19.2-392.2(K).

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Notch Crossing Road, Apartment 14B, Virginia Beach, Virginia 23456-2214

TELEPHONE: (757) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:track-only:VA:va_exp_identity_used_by_another

FINGERPRINT INSTRUCTIONS FOR THE LAW-ENFORCEMENT AGENCY STEP

For: Maria-Alejandra O'Shaughnessy-Whitfield

Petition: the composed petition under Va. Code Sec. 19.2-392.2(B) in this packet.

Va. Code Sec. 19.2-392.2(B) makes one complete set of your fingerprints part of the petition itself, so this step happens BEFORE filing. Sec. 19.2-392.2(E) prescribes how the prints travel. In order:

STEP ONE. Ask a law-enforcement agency to take one complete set of your fingerprints.

STEP TWO. Give that agency a copy of your petition at the same time.

STEP THREE. The agency submits the fingerprints to the Central Criminal Records Exchange (CCRE) with the petition attached.

STEP FOUR. The CCRE forwards your criminal history and the fingerprint set to the court under seal.

AFTERWARDS. On completion of the hearing the court returns the fingerprint card. Where no hearing was held, the card is destroyed unless you ask for it back within thirty days or supply a stamped self-addressed envelope.

MONEY. No court fee or cost is charged for filing a petition under Sec. 19.2-392.2(B). A law-enforcement agency may charge for fingerprinting; this packet states no amount because no held source states one.

This page names no particular agency. Any law-enforcement agency can take the prints; if you do not know where to go, the clerk of the court that disposed of the charge can tell you which agencies serve that locality.

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MOTION FOR ENTRY OF AN EXPUNGEMENT ORDER UNDER VA. CODE SEC. 19.2-392.2(H)

USE THIS PAGE INSTEAD OF THE PETITION ONLY IF the charge was dismissed because the court found that the person arrested or charged is not the person named in the summons, warrant, indictment or presentment. Va. Code Sec. 19.2-392.2(H) then routes the matter to the DISMISSING court, on motion, and that route is faster. If that is not how your charge was dismissed, do not file this page; file the petition instead.

VIRGINIA:

IN THE COURT OF
(NAME OF THE COURT THAT DISMISSED THE CHARGE, AND ITS CITY OR COUNTY)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
MOVANT,

v.

COMMONWEALTH OF VIRGINIA.

Case number of the dismissed charge:

.....

MOTION FOR ENTRY OF AN EXPUNGEMENT ORDER UNDER VA. CODE Sec. 19.2-392.2(H)

1. The movant, Maria-Alejandra O'Shaughnessy-Whitfield, was arrested or charged in this matter, and the charge was dismissed because this Court found that the person arrested or charged is not the person named in the summons, warrant, indictment or presentment.

Charge that was dismissed, worded exactly as the court record words it:

.....

Date of dismissal of the charge:

.....

2. The movant asks this Court, as the dismissing court, to enter an order of expungement of the police and court records, including electronic records, relating to the dismissed charge, the dismissal and the expungement being pursuant to Va. Code Sec. 19.2-392.2(H).

DATE SIGNATURE OF MOVANT

(The movant signs and dates this motion personally. Nothing on this page is signed or dated for the movant.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Notch Crossing Road, Apartment 14B, Virginia Beach, Virginia

23456-2214

TELEPHONE: (757) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:track-only:VA:va_exp_identity_used_by_another

COPY FOR THE ATTORNEY FOR THE COMMONWEALTH

To: the attorney for the Commonwealth of the county or city where this petition is filed.

Enclosed is a copy of the petition for expungement filed by Maria-Alejandra O'Shaughnessy-Whitfield under Va. Code Sec. 19.2-392.2(B). A copy of the petition is served on the attorney for the Commonwealth of the locality where it is filed.

The attorney for the Commonwealth may object, answer, or give written notice of no objection within twenty-one days after service.

HOW THIS COPY MUST BE DELIVERED IS NOT STATED HERE. No source this packet is built from establishes the manner of service, and a guessed mechanic in a filing instruction is worse than none. Before you serve this copy, ask the clerk of the circuit court of the county or city where the case was disposed of how service on the attorney for the Commonwealth must be made, and use that method.

NAME AND MAILING ADDRESS OF THE ATTORNEY FOR THE COMMONWEALTH

(you write it here before service; the circuit court clerk can provide it)

.....
.....

DATE OF SERVICE OF THE COPY

SIGNATURE OF PETITIONER

This page is not proof of service and does not say that anything has been served. It is completed and signed by the petitioner when the copy actually goes out, in the manner the clerk directs. A date or a signature written before the copy goes out would be false.

Route: obligation:track-only:VA:va_exp_identity_used_by_another

FILING INSTRUCTIONS

This packet is prepared for expunging a Virginia record created when another person used your name or identification without your consent, under Va. Code Sec. 19.2-392.2(B).

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

WHICH PAGE YOU FILE

This packet carries two instruments and you file exactly one of them:

- THE PETITION (Va. Code Sec. 19.2-392.2(B)) - the ordinary route. File it with the court that disposed of the charge.

- THE MOTION (Va. Code Sec. 19.2-392.2(H)) - only if the charge was dismissed because the court found you were not the person named in the summons, warrant, indictment or presentment. File it with the court that DISMISSED the charge; that court enters the order on motion, and that route is faster.

If you are not sure which of the two fits how your charge ended, stop and ask the clerk of the circuit court of the county or city where the case was disposed of before filing either.

WHAT YOU DO, IN ORDER

STEP ONE. Gather the case records. Ask the clerk of the circuit court of the county or city where the case was disposed of for the case papers; district court charges are handled by that locality's circuit court, so that is where to ask even for a general district court charge. Request your own copy of your Virginia criminal history record from the Central Criminal Records Exchange (Virginia State Police) for the fee they charge.

STEP TWO. Fill in every dotted blank this packet's participant instructions list, from those records. Do not guess a date or a charge wording.

STEP THREE. Have one complete set of your fingerprints taken by a law-enforcement agency and give that agency a copy of your petition at the same time - the fingerprint instructions page sets out the whole of that step. Sec. 19.2-392.2(B) makes the fingerprint set part of the petition, so this comes before filing.

STEP FOUR. Sign and date the petition (or, on the Sec. 19.2-392.2(H) route, the motion) yourself.

STEP FIVE. File with the court that disposed of the charge (or, on the Sec. 19.2-392.2(H) route, the dismissing court). No court fee or cost is payable for filing under Sec. 19.2-392.2(B).

STEP SIX. After filing, separately ask the CCRE to forward a copy of your Virginia criminal history record electronically to the court. The clerk's recorded guidance is that the case is established with the court first and the State Police request comes second, so the sequence matters.

STEP SEVEN. Have a copy of the petition served on the attorney for the Commonwealth of the locality where it is filed, using the service page in this packet, in the manner the clerk directs. The attorney for the Commonwealth may object, answer, or give written notice of no objection within twenty-one days after service.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

Stop, and take this packet to a lawyer or a legal-aid office, if any of these is true:

- it is not clear whether you authorised the use of your name;

- you may in fact have been the person arrested;
- the attorney for the Commonwealth objects or answers, or the court sets a contested hearing;
- the identity misuse extends beyond Virginia records;
- any immigration question is involved.

WHAT THIS PACKET DOES NOT TELL YOU

- HOW service on the attorney for the Commonwealth must be made, and whether the clerk requires any local cover sheet. Neither is established by the sources this packet is built from. Ask the clerk of the circuit court of the county or city where the case was disposed of; that clerk's office is the authority that can answer both.
- What a law-enforcement agency charges for fingerprinting. No held source states an amount.

WHAT THIS PACKET IS NOT

This is a prepared set of composed pleadings and process pages. It is not an official Supreme Court of Virginia form - none exists for Sec. 19.2-392.2(B), which is why these pages are composed - and it is not legal advice, it is not filed for you, and it does not decide whether the court will grant expungement. Sealing restricts access; expungement removes.

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